

106	2024-01433115 Royal American Wholesale vs. Eleganza Tiles Inc	1. Motion to Be Relieved as Counsel of Record 2. Case Management Conference The unopposed motion by Jedediah Thurkettle (“Counsel”), attorney of record for Defendant Eleganza Tiles, Inc. (“Defendant”), for an order permitting Counsel to be relieved as attorney of record for Defendant in this action is continued. On April 24, 2026, Counsel filed an amended declaration in support of this motion. Counsel did not file a proof of service showing the amended declaration was served on Defendant. The hearing on this motion is continued to allow Counsel an opportunity to properly serve the amended declaration on Defendant. No later than July 16, 2026, Counsel shall file a proof of service showing the amended declaration was properly served on Defendant. Counsel shall provide notice of the continuance to Defendant and all parties that have appeared in this action. No later than July 16, 2026, Counsel shall file a proof of service showing the notice of continuance was properly served on Defendant and all parties that have appeared in this action. Counsel is also ordered to file a revised order. Hearing on this motion is continued to September 14, 2026 at 2:00 PM in Department C27. The case management conference in this matter is continued to the same date and time. Counsel is ordered to give notice.
107	2025-01537289 Flores vs. California Pizza Kitchen, Inc.	1. Motion to Compel Arbitration 2. Case Management Conference Defendant California Pizza Kitchen’s motion to compel arbitration of Plaintiff’s claims is granted. Defendant’s objections are overruled. Defendant submits a declaration of its People Systems Manager, Tera Thamawatanakul, who describes the hiring/onboarding procedure that Plaintiff went through and authenticates the arbitration agreement. (Thamawatanakul Decl., ¶¶ 3-11, Exs. A. B.) Specifically, she states that when Plaintiff applied for employment she created a Workday online account, through which Defendant sent onboarding documents after Plaintiff was hired. (Thamawatanakul Decl., ¶¶ 7, 8.) The arbitration agreement was included in these onboarding documents. Based on Defendant’s records, Plaintiff electronically acknowledged that she had read the policy on 6/29/22. (Thamawatanakul Decl., ¶¶ 8, 11, Ex. B.) In opposition, Plaintiff argues that she was not aware she was agreeing to arbitrate her claims when she acknowledged receipt of the employment documents. (Flores Decl., ¶ 2.) Plaintiff’s declaration is self-contradictory. She states both that “[a]s part of the onboarding process, I was required to log into Defendant’s Workday portal and review numerous onboarding materials and company documents,” and also that “I clearly did not actually review the documents, and nobody told me I needed to.” (Flores Decl., ¶ 2.) Plaintiff concedes that “Defendant’s own evidence establishes only that employees checked a box stating: ‘I have read and acknowledged the policy/notice in its entirety.’”